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Case No:

25NNCV06435

Hearing Date: 06/25/2026 – 8:30 a.m.

Trial

Date: UNSET

Case

Name: JOSEPH OROYE v. BERKSHIRE

HATHAWAY, INC., et al.

[Tentative Ruling – 2

Demurrers & 1 Motion to Strike]

DEMURRER 1

RELIEF REQUESTED

Defendant, Don Hillier, demurs to the first and second causes of action in the FAC pursuant to CCP § 430.10(e) [failure to state facts sufficient to constitute a cause of action].

PROCEDURAL ANALYSIS

Moving Papers: Demurrer; Proposed Order

Opposition Papers: Opposition

Reply Papers: Reply

Meet and Confer

A party filing a demurrer “shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP, § 430.41(a).) “The parties shall meet and confer at least five days before the date the responsive pleading is due. If the parties are not able to meet and confer at least five days prior to the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer.” (CCP, § 430.41(a)(2).)

Failure to sufficiently

meet and confer is not grounds to overrule or sustain a demurrer. (CCP, § 430.41(a)(4).)

Here, Defendant’s counsel

appears to have met and conferred. (Asrani Decl., ¶¶ 2-3.)

LEGAL STANDARDS FOR DEMURRERS

Demurrer – Sufficiency

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.)

In a demurrer proceeding,

the defects must be apparent on the face of the pleading or via proper judicial

notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at 747.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) “All that is required of a plaintiff, as a matter of pleading ... is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156-157.)

On demurrer, a trial court has an independent duty to “determine whether or not the ... complaint alleges facts sufficient to state a cause of action under any legal theory.” (*Das v. Bank of America, N.A.* (2010) 186 Cal.App.4th 727, 734.) Demurrers do not lie as to only parts of causes of action, where some valid claim is alleged but “must dispose of an entire cause of action to be sustained.” (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.) “Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.)

Demurrer – Uncertainty

A special demurrer for uncertainty, CCP section 430.10(f), is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (*Ibid.*)

TENTATIVE

RULING DEMURRER 1

Plaintiff, Joseph Oroye, filed the original complaint on 9/12/2025.

On 4/1/2026, Plaintiff filed the FAC against Defendants – (1) Berkshire Hathaway, Inc.; (2) BHH Affiliates, LLC.; (3) Pickford Real Estate, Inc.; and (4) Don Hillier.

Plaintiff alleges the following causes of action against all Defendants: (1) Sexual Harassment & Hostile Work Environment in Violation of FEHA (Gov. Code § 12940(j)); (2) Failure to Prevent Harassment and Discrimination in Violation of FEHA (Gov. Code § 12940(k)); (3) Common Law and Statutory Assault; (4) Sexual Assault (Civ. Code § 1708.5); (5) Intentional Infliction of Emotional Distress; and (6) Violation of Unfair Business Practices Act (Bus. & Prof. Code § 17200 et seq.).

Plaintiff, Joseph Oroye, alleges that he is an adult male and real estate agent. (See FAC, ¶¶ 1 & 5.)

Plaintiff alleges that Defendant, Don Hillier (also a male real estate agent), is a coworker of Plaintiff who performed work for Defendant Employer. (See FAC, ¶¶ 5 & 13.)

Plaintiff names the “Defendant Employer” as Defendants – Berkshire Hathaway, Inc.; BHH Affiliates, LLC; and Pickford Real Estate, Inc.

Plaintiff’s lawsuit arises from an incident at a work Christmas party on December 12, 2023, wherein Plaintiff alleges that Defendant, Don Hillier, approached Plaintiff from behind and, motivated by sexual desire directed at Plaintiff because of Plaintiff’s sex and gender, put his hand inside Plaintiff’s coat and made contact with Plaintiff’s body, squeezed Plaintiff’s right buttock, squeezed Plaintiff’s left breast, and attempted to kiss Plaintiff on the cheek. (See Compl. ¶ 14.)

Plaintiff also alleges he had further conversations with Hillier, and Plaintiff alleges that he reported the alleged assault to Marilyn Simon, Branch Manager, but Simon and Defendant Employer failed to conduct any steps to investigate or protect Plaintiff from further

harassment. (See Compl., ¶ 24, 26, & 40-46.)

TENTATIVE RULING – FIRST
CAUSE OF ACTION – DEMURRER 1

Plaintiff's first cause of action is for Sexual Harassment and Hostile Work Environment in Violation of FEHA (Gov. Code § 129040(j).)

Defendant, Don Hillier, demurs to the first cause of action on the basis of failure to state facts sufficient to constitute a cause of action.

Defendant argues that the FAC does not, and cannot, truthfully allege that the alleged harassment by Mr. Hillier occurred on the basis of sex, and that that the conduct took place because of Plaintiff's sex.

Defendant also argues that the FAC does not, and cannot, truthfully allege that the alleged harassment by Hillier created a hostile work environment.

In relevant part of Gov. Code § 12940(j)(1), it is an unlawful employment practice, unless based upon a bona fide occupational qualification, or, except where based upon applicable security regulations established by the United States or the State of California:

For an employer, labor organization, employment agency, apprenticeship training program or any training program leading to employment, or any other person, because of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, reproductive health decisionmaking, or veteran or military status, to harass an employee, an applicant, an unpaid intern or volunteer, or a person providing services pursuant to a contract. Harassment of an employee, an applicant, an unpaid intern or volunteer, or a person providing services pursuant to a contract by an employee, other than an agent or supervisor, shall be unlawful if the entity, or its agents or supervisors, knows or should have

known of this conduct and fails to take immediate and appropriate corrective action. An employer may also be responsible for the acts of nonemployees, with respect to harassment of employees, applicants, unpaid interns or volunteers, or persons providing services pursuant to a contract in the workplace, if the employer, or its agents or supervisors, knows or should have known of the conduct and fails to take immediate and appropriate corrective action. In reviewing cases involving the acts of nonemployees, the extent of the employer's control and any other legal responsibility that the employer may have with respect to the conduct of those nonemployees shall be considered. An entity shall take all reasonable steps to prevent harassment from occurring. Loss of tangible job benefits shall not be necessary in order to establish harassment.

(Gov. Code, § 12940(j)(1).)

Further, under Gov. Code § 12940(j)(3):

An employee of an entity subject to this subdivision is personally liable for any harassment prohibited by this section that is perpetrated by the employee, regardless of whether the employer or covered entity knows or should have known of the conduct and fails to take immediate and appropriate corrective action.

(Gov. Code, § 12940(j)(3).)

Here, based on the allegations in paragraphs 1-46 and 51-67 of the FAC, Plaintiff states facts sufficient to constitute a cause of action for the first cause of action.

Defendant, Don Hillier's, demurrer to the first cause of action is OVERRULED.

TENTATIVE RULING – SECOND
CAUSE OF ACTION – DEMURRER 1

Plaintiff's second cause of action is for Failure to Prevent Harassment and Discrimination in Violation of FEHA (Gov. Code § 129040(k).)

Defendant, Don Hillier,
demurs to the second cause of action on the basis of failure to state facts
sufficient to constitute a cause of action.

Defendant, Hillier, argues
that 12940(k) explicitly applies only to “an employer, labor organization,
employment agency, apprenticeship training program, or any training program
leading to employment,” and he is not Plaintiff’s employer.

In opposition, Plaintiff
explains that inclusion of the second cause of action against Defendant, Don
Hillier, was inadvertent, and Plaintiff will dismiss Hillier from the second
cause of action by way of stipulation or amendment.

The Court to hear argument.
In light of Plaintiff’s concession to dismiss Defendant, Hillier, from the
second cause of action, the Court is inclined to OVERRULE Hillier’s demurrer to
the second cause of action as moot. However, the Court will hear argument
because it is unclear on how Plaintiff is doing this because Plaintiff mentions
dismissing Hillier by way of stipulation or amendment. The Court notes that as
of now, the second cause of action is alleged against “All Defendants.” Should
the Court instead SUSTAIN THE DEMURRER, with LEAVE TO AMEND GRANTED, with
respect to the second cause of action, so that Plaintiff can remove Hillier as
a named Defendant in this cause of action?

DEMURRER

2 (with Motion to Strike)

RELIEF REQUESTED

Defendants – Berkshire Hathaway, Inc.; BHH Affiliates, LLC.; and
Pickford Real Estate, Inc. – demur to all six causes of action in the FAC
pursuant to CCP §§ 430.10(e) [failure to state facts sufficient to constitute a
cause of action] and 430.10(f) [uncertainty/ambiguity/unintelligibility].

PROCEDURAL ANALYSIS

Moving

Papers: Demurrer; Proposed

Order Demurrer; Motion to Strike; Proposed Order Motion to Strike

Opposition

Papers: Opposition to

Demurrer; Opposition to Motion to Strike

Reply

Papers: Reply to Motion to Strike

[The Court notes that a reply was submitted for the motion to strike; however, a reply was not submitted for Demurrer 2.]

Meet and Confer

A party filing a demurrer “shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP, § 430.41(a).) “The parties shall meet and confer at least five days before the date the responsive pleading is due. If the parties are not able to meet and confer at least five days prior to the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer.” (CCP, § 430.41(a)(2).)

Failure to sufficiently meet and confer is not grounds to overrule or sustain a demurrer. (CCP, § 430.41(a)(4).)

Here, it appears that Defendants’ counsel met and conferred. (Buckner Decl., ¶¶ 2-3.)

TENTATIVE

RULING DEMURRER 2

On 4/1/2026, Plaintiff filed the FAC against Defendants – (1) Berkshire Hathaway, Inc.; (2) BHH Affiliates, LLC.; (3) Pickford Real Estate, Inc.; and (4) Don Hillier.

Defendants – Berkshire Hathaway, Inc.;

BHH Affiliates, LLC.; and Pickford Real Estate, Inc. – demur to all six causes

of action in the FAC pursuant to CCP §§ 430.10(e) [failure to state facts sufficient to constitute a cause of action] and 430.10(f) [uncertainty/ambiguity/unintelligibility].

TENTATIVE RULING – FIRST

CAUSE OF ACTION – DEMURRER 2

Plaintiff's first cause of

action is for Sexual Harassment and Hostile Work Environment in Violation of FEHA (Gov. Code § 12904(j).)

Defendants demur to the

first cause of action pursuant to CCP §§ 430.10(e) [failure to state facts sufficient to constitute a cause of action] and 430.10(f) [uncertainty/ambiguity/unintelligibility].

Defendants argue that

Plaintiff did not sufficiently state a claim because: the alleged incident occurred at an informal, after-hours holiday gathering at a co-worker's private residence; Plaintiff was intoxicated and had taken gummies; the allegations do not demonstrate that Plaintiff was targeted on the basis of sex or gender; the allegations are too vague; and there is no nexus between the incident and the alleged damages.

The Court incorporates the

language of Gov. Code § 12940(j)(1), that it previously cited above with respect to the tentative ruling on Demurrer 1, into the instant ruling.

Here, based on the

allegations in paragraphs 1-46 and 51-67 of the FAC, Plaintiff states facts sufficient to constitute a cause of action for the first cause of action.

[The Court notes that

Plaintiff alleges that all defendants were the agent or employee of each of the other defendants, acting within and outside of the course, scope, or under authority of his/her agency/employment, and that Defendant Employer's managing agents authorized or ratified the unlawful acts described in the FAC. (See FAC, ¶¶ 8-9.)]

Defendants' demurrer to the first cause of action is OVERRULED.

TENTATIVE RULING – SECOND CAUSE OF ACTION – DEMURRER 2

Plaintiff's second cause of action is for Failure to Prevent Harassment and Discrimination in Violation of FEHA (Gov. Code § 129040(k).)

Under Gov. Code § 12940(k), it is an unlawful employment practice, unless based upon a bona fide occupational qualification, or, except where based upon applicable security regulations established by the United States or the State of California:

For an employer, labor organization, employment agency, apprenticeship training program, or any training program leading to employment, to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring.

(Gov. Code, § 12940(k).)

Defendants argue that the second cause of action fails because it is wholly derivative of an underlying claim for actionable harassment, discrimination, or retaliation, and since Plaintiff did not state a viable claim for sexual harassment/hostile work environment, Plaintiff's claim here also fails.

The Court does not find Defendants' argument availing. As previously explained with respect to the first cause of action, Plaintiff states facts sufficient to constitute a cause of action for the first cause of action.

Defendants also argue that Plaintiff does not state sufficient facts for the second cause of action because it requires knowledge and a failure to act in response to prevent further harm.

Defendants' argument is unavailing.

Plaintiff alleges sufficient facts to

state a cause of action for the second cause of action in paragraphs 26, 40-46, and 68-73.

Defendants also argue that Hillier's conduct cannot be imputed to Defendants.

The Court also finds this argument unavailing because the second cause of action pertains to the employer's failure to take reasonable steps necessary to prevent discrimination and harassment from occurring (Gov. Code § 12940(k)), not Hillier's conduct. As the tentative ruling in Demurrer 1 explained, Plaintiff plans to dismiss the second cause of action with respect to Hillier. Further, to the extent that Defendants argue that Hillier's conduct cannot be imputed to Defendants, the Court will address this in its section on assault and battery. As will be explained in the Court's section on assault and battery, Defendants' argument that Hillier's conduct cannot be imputed to Defendants is unavailing.

Defendants' demurrer to the second cause of action is OVERRULED.

TENTATIVE RULING – THIRD & FOURTH CAUSES OF ACTION – DEMURRER 2

Plaintiff's third cause of action is for common law and statutory assault, and Plaintiff's fourth cause of action is for sexual battery (Civ. Code § 1708.5).

Defendants argue that the third and fourth causes of action fail as a matter of law because the alleged conduct cannot be imputed to Defendants under either respondeat superior or ratification theories.

Defendants argue that employers are not vicariously liable for employees' intentional torts unless a causal nexus exists between the tortious act and the employees' work duties.

Defendants argue that the alleged incident occurred at a private residence during an informal, after-hours Christmas party that was purely social in nature, and Hillier's alleged intoxication and inappropriate touching bore no relationship to his duties as a

real estate agent.

Defendants also argue that Plaintiff cannot establish employer liability through ratification because it requires evidence that the employer had knowledge of the employee's wrongful conduct and affirmatively adopted, approved, or failed to repudiate it after gaining that knowledge.

Defendants' arguments are unavailing.

The general rule of respondeat superior is as follows, "an employer is vicariously liable for the torts of its employees committed within the scope of the employment." (Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 298.)

Further, to this Court, it appears as if respondeat superior is codified by statute.

Under Civil Code §2338, "Unless required by or under the authority of law to employ that particular agent, a principal is responsible to third persons for the negligence of his agent in the transaction of the business of the agency, including wrongful acts committed by such agent in and as a part of the transaction of such business, and for his willful omission to fulfill the obligations of the principal." (Civil Code §2338.)

Under Civil Code §2330, "An agent represents his principal for all purposes within the scope of his actual or ostensible authority, and all the rights and liabilities which would accrue to the agent from transactions within such limit, if they had been entered into on his own account, accrue to the principal." (Civil Code §2330.)

Further, the case of Michelson v. Hamada helps explain the principal of agency:

Civil Code section 2295 states: "An agent is one who represents another, called the principal, in dealings with third persons. Such representation is called agency." (3) Any person may be authorized to act as an agent, including an adverse party to a transaction. (See Naify v. Pacific Indemnity Co. (1938) 11 Cal.2d 5, 7 [76 P.2d 663, 115 A.L.R. 476]; Orfanos v.

California Insurance Co. (1938) 29 Cal.App.2d 75, 78-81 [84 P.2d 233]; 2 Witkin, Summary of Cal. Law (9th ed. 1987) Agency and Employment, § 33, p. 47.) "Whether a person performing work for another is an agent ... depends primarily upon whether the one for whom the work is done has the legal right to control the activities of the alleged agent. [Citations.]" (Malloy v. Fong (1951) 37 Cal.2d 356, 370 [232 P.2d 241].) An agent is a fiduciary. (Kennard v. Glick (1960) 183 Cal.App.2d 246, 250-251 [agent entrusted with duty of receiving and disbursing moneys and keeping accurate records of the transactions]; Estate of Arbuckle (1950) 98 Cal.App.2d 562, 569-570 [220 P.2d 950, 23 A.L.R.2d 372] [business manager unable to produce will entrusted to him]; 2 Witkin, Summary of Cal. Law, supra, Agency and Employment, §§ 41, 43 et seq., pp. 53, 55.) Agency may be implied from the circumstances and conduct of the parties (see Bergtholdt v. Porter Bros. Co. (1896) 114 Cal. 681, 685-688 [46 P. 738]; Brand v. Mantor (1935) 6 Cal.App.2d 126, 130; Pollack v. Lytle (1981) 120 Cal.App.3d 931, 940; Brea v. McGlashan (1934) 3 Cal.App.2d 454, 464 [39 P.2d 877].) (4) When the principal in reliance on the agent does not have the service performed by others, the agent is liable for failure to perform. (See Lab. Code, § 2851; Poile v. Stockton Merchants Assn. (1959) 176 Cal.App.2d 100, 104 [collection agency liable for amount of check it failed to collect and was under duty to inform principal of failure]; Rest.2d Agency, § 378; 2 Witkin, Summary of Cal. Law, supra, Agency and Employment, § 62, p. 68.) (5) A contract between parties that includes the rendering of services does not preclude recovery for breach of a confidential relationship where property is misappropriated. (Agair Inc. v. Shaeffer (1965) 232 Cal.App.2d 513, 517 [42 Cal.Rptr. 883].)

(Michelson v. Hamada (1994) 29 Cal.App.4th 1556, 1579-80.)

As to alleging agency at the pleading stage, "An allegation of agency is an allegation of ultimate fact that must be accepted as true for purposes of ruling on a demurrer." (City of Industry v. City of Filmore (2011) 198 Cal.App.4th 191, 212-13.) "We have already noted, however, that an allegation of agency as such is a statement of ultimate fact. Consequently further allegations explaining how this fact of agency originated become unnecessary." (Skopp v. Weaver (1976) 16 Cal.3d 432, 439.)

Further, ratification is explained in C.R.

v. Tenet Healthcare Corp. (2009) 169 Cal.App.4th 1094:

“As an alternate theory to respondeat superior, an employer may be liable for an employee's act where the employer either authorized the tortious act or subsequently ratified an originally unauthorized tort. [Citations.] The failure to discharge an employee who has committed misconduct may be evidence of ratification. [Citations.] The theory of ratification is generally applied where an employer fails to investigate or respond to charges that an employee committed an intentional tort, such as assault or battery. [Citations.] Whether an employer has ratified an employee's conduct is generally a factual question. [Citation.]” (Baptist v. Robinson (2006) 143 Cal.App.4th 151, 169–170, 49 Cal.Rptr.3d 153; Rakestraw v. Rodrigues (1972) 8 Cal.3d 67, 73, 104 Cal.Rptr. 57, 500 P.2d 1401 [“A purported agent's act may be adopted expressly or it may be adopted by implication based on conduct of the purported principal from which an intention to consent to or adopt the act may be fairly inferred, including conduct which is ‘inconsistent with any reasonable intention on his part, other than that he intended approving and adopting it.’ ”].) A principal may be liable when it ratifies an originally unauthorized tort. (Murillo v. Rite Stuff Foods, Inc. (1998) 65 Cal.App.4th 833, 852, 77 Cal.Rptr.2d 12; Shultz Steel Co. v. Hartford Accident & Indemnity Co. (1986) 187 Cal.App.3d 513, 519, 523, 231 Cal.Rptr. 715.) And generally, the ratification relates back to the time the tortious act occurred. (Rakestraw v. Rodrigues, supra, 8 Cal.3d at p. 73, 104 Cal.Rptr. 57, 500 P.2d 1401; Ballard v. Nye (1903) 138 Cal. 588, 597, 72 P. 156.) As noted, ratification may occur when an employer learns of misconduct and fails to discharge an agent or employee. (City of Los Angeles v. Superior Court (1973) 33 Cal.App.3d 778, 782–783, 109 Cal.Rptr. 365; Coats v. Construction & Gen. Laborers Local No. 185 (1971) 15 Cal.App.3d 908, 914, 93 Cal.Rptr. 639.)

(C.R. v. Tenet Healthcare Corp. (2009) 169 Cal.App.4th 1094, 1110-1111.)

Here, it appears that Plaintiff successfully pled respondeat superior and ratification, and it appears Plaintiff successfully pled the third and fourth causes of action, in paragraphs 8-9, 10-46, 74-84 and 85-93.

[The Court notes that Defendants' demurrer does not actually attack any specific elements of the third and fourth causes of action. Defendants' demurrer, with respect to the third and fourth causes of action, discussed respondeat superior and ratification. In any event, it still appears that Plaintiff successfully pled claims for the third and fourth causes of action.]

Defendants' demurrer to the third and fourth causes of action are OVERRULED.

TENTATIVE RULING – FIFTH CAUSE OF ACTION – DEMURRER 2

Plaintiff's fifth cause of action is for Intentional Infliction of Emotional Distress (IIED).

Plaintiff's FAC alleges:

95. DEFENDANT EMPLOYER and DEFENDANT HILLIER subjected PLAINTIFF to unlawful working conditions by sexually assaulting PLAINTIFF at a company event, failing to investigate PLAINTIFF's complaints of sexual harassment for over thirteen months, creating and maintaining a hostile work environment, and retaliating against PLAINTIFF for complaining about the sexual assault and DEFENDANT EMPLOYER's failure to address it.

96. DEFENDANT HILLIER's conduct was outrageous and unprivileged when he, motivated by sexual desire directed at PLAINTIFF because of PLAINTIFF's sex and gender, sexually assaulted PLAINTIFF by squeezing PLAINTIFF's buttock, squeezing PLAINTIFF's breast, and attempting to kiss PLAINTIFF at DEFENDANT EMPLOYER's Christmas party, and later mocking PLAINTIFF by asking "Is your breast very soft?" while laughing when PLAINTIFF confronted him about the assault.

97. DEFENDANT EMPLOYER's conduct was outrageous and unprivileged when it completely failed to investigate PLAINTIFF's sexual harassment complaint for over thirteen months, conducted immediate investigations into complaints against PLAINTIFF while ignoring his complaint, allowed DEFENDANT HILLIER to continue working without any disciplinary action, and permitted a hostile work environment where other

agents avoided and isolated PLAINTIFF after he reported the sexual harassment.

98. DEFENDANTS' conduct was done with the intention to cause, and in reckless disregard of the probability of causing, PLAINTIFF emotional distress.

99. As an actual and proximate result of DEFENDANTS' outrageous and unprivileged conduct set forth, PLAINTIFF has suffered, and continues to suffer, severe emotional distress including a heart attack requiring emergency hospitalization, Post-Traumatic Stress Disorder, Major Depressive Disorder, physical symptoms including inability to be touched, and ongoing psychological treatment and medication.

100. As a result of DEFENDANTS' intentional infliction of emotional distress, PLAINTIFF has suffered consequential damages in an amount according to proof for lost past and future wages, medical expenses, psychological treatment costs, lost employment benefits, diminished employability, and emotional distress damages.

101. The aforementioned wrongful conduct of DEFENDANTS was done with oppression, fraud, or malice, or with a conscious disregard of PLAINTIFF's rights to be free from sexual harassment, discrimination and retaliation in employment justifying an award of punitive damages against DEFENDANTS by way of example, punishment, and deterrence.

102. PLAINTIFF is informed and believes and thereon alleges that at all times relevant herein, DEFENDANT EMPLOYER's managing agents, officers, or directors, including Branch Manager Simon, ratified or authorized the aforementioned wrongful conduct by failing to investigate PLAINTIFF's complaint, allowing DEFENDANT HILLIER to continue working without discipline, and maintaining the hostile work environment, and were themselves guilty of oppression, fraud, or malice toward PLAINTIFF or guilty of acting in conscious disregard of PLAINTIFF's rights under the law.

(FAC, ¶¶
95-102.)

The
case of *Yau v. Santa Margarita
Ford, Inc.* describes the elements of

an IIED claim:

“ ‘ [T]o state a cause of

action for intentional infliction of emotional distress a plaintiff must show:

(1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4)

actual and proximate causation of the emotional distress by the defendant's

outrageous conduct.” ’ [Citation.] ‘ “Conduct, to be ‘ “outrageous” ’ must be

so extreme as to exceed all bounds of that usually tolerated in a civilized

society.” ’ [Citation.] In order to avoid a demurrer,

the *161 plaintiff must allege with ‘great[] specificity’ the acts

which he or she believes are so extreme as to exceed all bounds of that usually

tolerated in a civilized community. [Citation.]” (Vasquez v. Franklin

Management Real Estate Fund, Inc. (2013) 222 Cal.App.4th 819, 832, 166

Cal.Rptr.3d 242 (Vasquez).)

(Yau

v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 160-61.)

Moving Defendants’ first argument is

that the allegations do not establish the type of “extreme and outrageous”

conduct necessary to sustain an IIED claim because it is not conduct that

exceeds the bounds of decency tolerated by a civilized society.

In opposition, Plaintiff cites Etter

v. Veriflo Corp. (1998) 67 Cal.App.4th 457 to argue that a sexually

motivated physical assault on a coworker at a company event, followed by over

thirteen months of deliberate inaction on a formal sexual harassment complaint

while subjecting the victim to disparate treatment, is paradigmatically

outrageous. Plaintiff argues that sexual assault may constitute extreme and

outrageous conduct supporting an IIED claim, and employer awareness coupled

with failure to address harassment may, in appropriate circumstances, support

such claims.

The Court to hear argument on

Defendants’ first argument.

As to Defendants’ first argument, it

appears that whether the alleged conduct qualifies as outrageous is usually a

question of fact.

“Whether conduct qualifies as outrageous is usually a question of fact, but a court may determine in the first instance whether, as a matter of law, alleged conduct may reasonably be regarded as so extreme and outrageous as to allow the matter to proceed to a trier of fact.” (Sandoval v. Pali Institute, Inc. (2025) 113 Cal.App.5th 616, 635 citing Berkley v. Dowds (2007) 152 Cal.App.4th 518, 534.)

As to Plaintiff’s argument in opposition to Defendants’ first argument, Plaintiff’s citation to Etter is unavailing because that case has nothing to do with a claim for IIED.

The Court is inclined to find Defendants’ first argument unavailing, but it will hear argument.

Defendants’ second argument cites to Janken v. GM Hughes Electronics (1996) 46 Cal.App.4th 55, 80 to argue that courts routinely dismiss IIED claims where employment-related insults, disciplinary actions, or perceived unfair treatments were involved because “managing personnel is not outrageous conduct...even if improper motivation is alleged.” (Def. Mot., p. 8.)

The Court is inclined to find Defendants’ second argument unavailing because Plaintiff’s IIED claim does not simply charge Defendants with improper personnel management activity.

Defendants’ third argument cites to Miklosy v. Regents of Univ. of California (2008) 44 Cal.4th 876, 902 to argue that Plaintiff’s IIED claim is barred by the workers’ compensation exclusivity doctrine, which provides the exclusive remedy for injuries arising out of and in the course of employment. Defendants argue that the IIED claim is premised primarily on alleged mishandling of an internal complaint.

In opposition, Plaintiff argues:

Defendants also argue workers’ compensation exclusivity bars the IIED claim. But the workers’ compensation exclusivity rule does not apply

to claims arising from intentional acts of sexual assault. (Fermino v. Fedco, Inc. (1994) 7 Cal.4th 701, 715-716 [intentional torts outside WC exclusivity].) Plaintiff's IIED claim is premised on Hillier's criminal sexual assault and Defendants' ratification thereof, not ordinary personnel decisions. The exclusivity doctrine provides no protection here.

(Pl. Oppo.. p. 7.)

Here, the Court to hear argument on Defendants' third argument.

Defendants' citation to Miklosy v. Regents of Univ. of California (2008) 44 Cal.4th 876 appears to be on point to the extent that an IIED claim can be barred, and the exclusive remedy is workers' compensation, in the context of former employees bringing an action against the University of California and supervisors for retaliation in violation of Whistleblower Act, wrongful termination in violation of public policy, wrongful constructive termination in violation of public policy, and intentional infliction of emotional distress. (Id. at 902-903.)

Although Defendants' third argument could potentially wipe out Plaintiff's claim for IIED, Plaintiff's argument in opposition on the issue is shockingly lacking in substance.

Plaintiff argues that the workers' compensation exclusivity rule does not apply to claims arising from intentional acts of sexual assault.

Problematic with Plaintiff's argument is that the fifth cause of action is for IIED, not sexual assault.

Additionally, Plaintiff cites to Fermino v. Fedco, Inc. (1994) 7 Cal.4th 701, 715-716 to argue that intentional torts are outside of workers' compensation exclusivity; however, nowhere in Fermino on pages 715-716, the pages that Plaintiff cites, does the Court see the Supreme Court in Fermino state that intentional torts fall outside of workers' compensation exclusivity.

Further, a significant portion of Fermino that Plaintiff cites, page 716, appears to be entirely irrelevant because page

716 discusses false imprisonment, not a claim for IIED.

A portion of *Fermino* does appear to discuss IIED in the context of workers' compensation exclusivity, but Plaintiff does not cite that portion of the case, nor does Plaintiff discuss that body of law. The body of law on workers' compensation claims and IIED claims appears to be complex, and Plaintiff does not attempt to explain what the law is in this area.

Through no help of Plaintiff, and on the Court's own research, the Court found the case of *Lee v. West Kern Water Dist.*, which discusses the case of *Hart*, and explains in relevant part:

In *Hart v. National Mortgage & Land Co.* (1987) 189 Cal.App.3d 1420, 1430, 235 Cal.Rptr. 68, the Court of Appeal distinguished *Cole* and held that a claim of intentional infliction of emotional distress was not barred by the exclusivity rule. The plaintiff was subjected to a persistent campaign of harassment that included physical molestation and deliberate humiliation. This behavior could not be considered a normal risk of employment. (*Fermino*, supra, 7 Cal.4th at p. 714, 30 Cal.Rptr.2d 18, 872 P.2d 559.)

(*Lee v. West Kern Water Dist.* (2016) 5 Cal.App.5th 606, 627.)

Based on *Lee*, it appears that Plaintiff may have stated a claim for IIED; however, the Court to hear argument on Defendants' third argument.

[Based on oral argument, Defendants' demurrer to the fifth cause of action is (OVERRULED OR SUSTAINED) (with or without leave to amend).]

TENTATIVE RULING – SIXTH CAUSE OF ACTION – DEMURRER 2

Plaintiff's sixth cause of action is for Violation of Unfair Business Practices Act (Bus. & Prof. Code § 17200 et seq.).

Plaintiff's allegations pertaining to the sixth cause of action are located at paragraphs 103-110 in the FAC.

Both parties' arguments with respect to the sixth cause of action are entirely unhelpful to the Court; therefore, the Court to hear argument.

Defendants argue that under *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 322-324, to satisfy the standing requirement under the UCL, section 17204, a private plaintiff must demonstrate he suffered injury in fact and has lost money or property as a result of unfair competition.

Defendants then argue:

Here, Plaintiff was never an employee of Defendant and thus earned no "wages" subject to withholding. Rather, Plaintiff worked as an independent contractor, compensated exclusively through commissions on sales. The FAC affirmatively alleges that Plaintiff continues to work with Defendant and fails to plead that Defendant has withheld, converted, or failed to pay any commissions owed. Without economic loss, Plaintiff cannot satisfy the UCL's mandatory standing requirement.

(Def. Mot., p. 9.)

Defendants also argue that the UCL claim is vague and uncertain.

In opposition, Plaintiff argues he suffered substantial losses in earnings, job benefits, and withholding of employment compensation, and that under *Kwikset*, such allegations constitute economic injury in fact.

Further, Plaintiff argues that whether he is an employee or independent contractor is for the trier of fact and cannot be resolved on demurrer.

Plaintiff also argues that the UCL applies to business practices affecting independent contractors and employees,

and Plaintiff cites Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 180.

Here, the Court to hear argument because both parties' arguments are incomprehensible and entirely unhelpful to the Court. Neither party explains anything in a manner that would indicate they understand what they are talking about. The Court has no idea how Kwikset or Cel-Tech is anywhere remotely similar to the instant case, and the Court is unclear how the parties are arguing that those two cases implicate the allegations in the sixth cause of action.

[Based on oral argument, Defendants' demurrer to the sixth cause of action is (OVERRULED OR SUSTAINED) (with or without leave to amend).]

MOTION TO STRIKE (accompanying DEMURRER 2)

RELIEF REQUESTED

Defendants – Berkshire Hathaway, Inc.; BHH Affiliates, LLC.; and Pickford Real Estate, Inc. – move to strike the following portions of Plaintiff's FAC pursuant to CCP §§ 435 and 436:

1. P. 15: 1-5 (Exemplary damages)
2. P. 16: 22-26; P. 17: 1-2
(Exemplary damages)
3. P. 18: 18-22 (Exemplary damages)
4. P. 20: 26-27 (Exemplary damages)
5. P. 22: 21-28 (Exemplary damages)
6. P. 24: 17-21 (Exemplary damages)
7. P. 25: 19-23 Prayer seeking
exemplary damages

(Def. Mot., p.

2.)

LEGAL

STANDARD – MOTION TO STRIKE

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP, § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (CCP, § 436(b).)

A motion

to strike cannot be based upon the grounds that a complaint fails to state facts sufficient to constitute a cause of action, but instead is properly based on grounds of superfluous or abusive allegations, or improprieties in form or procedure. (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528-29.)

The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP, § 437; Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63 [“judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth”].)

Further, CCP § 431.10(a)-(c) states as follows:

(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An immaterial allegation in a pleading is any of the following:

(1) An allegation that is not essential to the statement of a claim or defense.

(2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense.

(3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An “immaterial allegation” means “irrelevant matter” as that term is used in Section 436.

(CCP, § 431.10(a)-(c).)

TENTATIVE RULING MOTION TO STRIKE

Portion

1 that Defendants seek to strike appears to be ¶ 66 in the first cause of action requesting punitive damages.

Portion

2 that Defendants seek to strike appears to be ¶ 73 in the second cause of action requesting punitive damages.

Portion

3 that Defendants seek to strike appears to be ¶ 84 in the third cause of action requesting punitive damages.

Portion

4 that Defendants seek to strike appears to be ¶ 93 in the fourth cause of action requesting punitive damages.

Portion

5 that Defendants seek to strike appears to be ¶ 102 in the fifth cause of action requesting punitive damages.

Portion

6 that Defendants seek to strike appears to be ¶ 109 in the sixth cause of action requesting punitive damages.

Portion

7 that Defendants seek to strike appears to be ¶6 in the Prayer for Relief requesting punitive damages.

Defendants

argue that Portions 1-7 should be stricken because: (1) Plaintiff does not

allege facts indicating oppression, fraud, or malice; and (2) Plaintiff does not allege facts establishing authorization or ratification.

In

an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example by way of punishing the defendant. (Civil Code, § 3294(a).)

“‘Malice’

means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code, § 3294(c)(1).)

“‘Oppression’

means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. (Civil Code, § 3294(c)(2).)

“‘Fraud’

means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (Civil Code, § 3294(c)(3).)

Under

Civil Code § 3294(b):

An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

(Civ. Code, § 3294(b).)

Here, the Court plans to DENY Defendants' motion to strike portions 1, 2, 3, 4, and 7 because Plaintiff sufficiently alleges facts for the trier of fact to find malice, oppression, fraud, and ratification.

How the Court will rule on Portions 5 and 6 depends on how this Court rules on the fifth and sixth causes of action in Demurrer 2.